

These exhibits, coupled with the declaration of Mr. Cervantes, establish a prima facia showing for Breach of Contract, and that the balance owed to the Plaintiff is \$13,845.68. The burden would normally shift to the Defendant at this point, but the Motion is unopposed. In addition, defendant's answer, filed May 22, 2025, does not deny the allegations of the complaint, nor does it assert any affirmative defenses.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.

Plaintiff to prepare the order after hearing.

5. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
***HEARING ON MOTION IN RE: FOR LEAVE TO ADD EXHIBIT "N" TO THE 3RD AMENDED COMPLAINT**
FILED BY: SCHINDLER, JULIE A M
TENTATIVE RULING:

Plaintiff moves for leave to add a new Exhibit, designated as Exhibit N, to the Third Amended Complaint. Defendants argue that the motion is unnecessary, on the ground that the information contained in the proposed Exhibit (a medical record) is already alleged in the Third Amended Complaint. Nonetheless, however, they do not oppose the motion as long as it is not deemed to constitute a Fourth Amended Complaint. The underlying concern appears to be that defendants have demurred more than once, only to have plaintiff amend the complaint again.

Amendments of pleadings are liberally granted, particularly where there is no prejudice to the opposing party.

The motion to amend the Third Amended Complaint by adding Exhibit N is granted with the proviso that the addition of Exhibit N shall not constitute the filing of a Fourth Amended Complaint, including for purposes of any pending or future demurrer or motion to strike. No other changes to the Third Amended Complaint are authorized by this order.

6. 9:00 AM CASE NUMBER: L25-08444
CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA
***HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26**
FILED BY:
TENTATIVE RULING:

Defendant moves under Code of Civil Procedure section 454 that plaintiff be precluded from offering an account at trial, or, in the alternative, that plaintiff be ordered to provide a further account.

Section 454 provides as follows:

It is not necessary for a party to set forth in a pleading the items of an account therein alleged, but he must deliver to the adverse party, within ten days after a demand thereof in writing, a copy of the account, or be precluded from giving evidence thereof. The court or judge thereof may order a further account when the one delivered is too general, or is defective in any particular.

The “account” is often referred to as a “Bill of Particulars.” Failure to comply with the ten-day limit does not require exclusion, at least where a response was provided shortly after the deadline and there is no prejudice to the defendant. (*Cromer v. Strieby* (1942) 54 Cal.App.2d 405, 409.)

Plaintiff’s response is essentially that discovery under the Civil Discovery Act is the more appropriate method to resolve these issues, because the provision is intended to enable the defendant to respond to the complaint. (See *Dobbins v. Hardister* (1966) 242 Cal.App.2nd 787, 795.) Plaintiff offers no justification for the failure to timely respond. As to the sufficiency of the materials, Plaintiff argues that the response included “all available account statements,” and that this is sufficient.

Defendant’s initial request for a Bill of Particulars made 9 separate requests (including subparts). She alleges that the statements provided did not satisfy all of the demands (although the response is not provided). Defendant, however, fails to establish that she is entitled to make specific demands that go beyond simply setting forth “a copy of the account” as set forth in the statute.

Defendant also objects that the response was not verified, but the statute (in the second paragraph of section 454), requires that the Bill of Particulars be verified only where the complaint was verified. The complaint here was not verified.

Defendant has failed to establish that it was prejudiced by the late filing of the Bill of Particulars. While the Bill apparently did not comply with Defendant’s specific demands, the Court finds that Defendant has not shown that it is “too general, or is defective in any particular,” as required by section 454.

The motion is denied.

**7. 9:00 AM CASE NUMBER: L25-09371
CASE NAME: CAPITAL ONE N.A. VS. BRANDON RUTLEY**